

yielded to the importunity of one of the *cestuis que trust*, it was held by Sir A. Hart, that, although the trustee [*337] was bound to replace the specific *stock, the *cestuis que trust* should not have the option of taking the proceeds with interest (a). If the trustee become bankrupt, the *cestuis que trust* may at their option prove for the proceeds with interest, or for the price of the specific stock at the date of the bankruptcy with interim dividends (b).

82. **Neglect to invest property.**—If trustees be under an obligation to invest in the funds, and they pay the money into a *bank* with a direction to lay it out in Bank Annuities, and the bankers neglect to do it, and the trustees make no inquiry for five months, and the bankers fail, the trustees are answerable for the money or the stock at the option of the *cestuis que trust* (c).

83. **Trustees may not invest so as to subject the fund to the control of any one trustee.**—Trustees would not be justified in making any investment that would subject the trust money to the power or control of any *one* of the trustees singly; they could not, for instance, lay out the fund upon India bills (supposing such a security to be warranted by the settlement), if made payable, not to all the trustees in their joint capacity, but to one of the trustees individually (d).

84. **Solicitors.**—Solicitors employed in negotiating a loan of trust monies, may not be liable for a breach of trust if they have no other privity with the transaction than what arises from their professional duty, but they will be deemed trustees and be responsible as such if they act professionally in carrying out a transaction which they know to be a breach of trust, and which is calculated to promote their own private ends (e).

(a) O'Brien v. O'Brien, 1 Moll. 533.

(b) *Ex parte* Shakeshaft, 3 B. C. C. 197; *Ex parte* Gurner, 1 Mont. Deac. & De G. 497.

(c) Challen v. Shippam, 4 Hare, 555.

(d) Walker v. Symonds, 3 Sw. 1, see 66; and see Salway v. Salway, 2 R. & M. 218; *Ex parte* Griffin, 2 Gl. & J. 114; Clough v. Dixon, 8 Sim.

594; 3 M. & Cr. 490. But see *ante*, p. 295; Mendes v. Guedalla, 2 J. & H. 259; Consterdine v. Consterdine, 31 Beav. 330; [Lewis v. Nobbs, 8 Ch. D. 591.]

(e) Alleyne v. Darcy, 4 Ir. Ch. Rep. 199, see 204, 208; Fyler v. Fyler, 3 Beav. 550, and see Barnes v. Addy, 9 L. R. Ch. App. 244, and *post*, chap. xxx. s. 3.